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POL S 384 Essay

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Protests and free expression have become a hot topic in modern global politics, where while some states are pushing toward a more democratic and open government, others are consciously choosing to revert to more conservative and authoritarian systems. The United States falls somewhere in between especially with regards to its indigenous populations, who have long felt subjugated upon and discriminated against by the white settler colonialism that claims this land as a city upon a hill for “all” people. Still, they resist. The Thirty-Meter Telescope (TMT) was proposed by Caltech in 2000 as a successor to the famous Keck Telescope, located on Mauna Kea. Larger telescopes gather more light, allowing astronomers to see more distant—thus, older—objects in the night sky in significantly more detail, crafting a more complete picture for cosmology enthusiasts. TMT was designed to be twelve times as sharp as even the famed Hubble Space Telescope (Mok 2014). However, intense demonstrations broke out on the volcano’s summit as construction was set to begin in October of 2014: indigenous activist groups blocked the observatory road, saying the telescope should not be built because it will desecrate the sacred land of native Hawaiians. The next decade has been a back and forth between science and faith tradition, debating whether progress for human understanding is even progress if at the expense of human culture. I argue that indigenous peoples strongly attempt but ultimately fail to act as custodians of the environment because their activism in biodiversity regimes cannot sufficiently challenge norms in governance that frown upon their traditional ecological knowledge and dissuade them from achieving equal legal standing. This is self-evident in the aforementioned case study of the Thirty Meter Telescope protests on Mauna Kea.

The biodiversity regime is crucial to this issue because it is the set of norms that perfectly encapsulates the aspects of the environment that the indigenous Hawaiians hold dear. There are, for one, many plants and animals that are native to Mauna Kea, such as the silver-sword plant and the finch-bellied palila, which is endangered. But for native Hawaiians, what Westerners would see as an environmental approach *is* their complete worldview. They believe that nature is “the living manifestation of the gods” and they must align their behavior to always respect their holy deities (Moseley 2023). When aboriginal peoples object to capitalistic overdevelopment, they simultaneously fight for the planet and all the beauty within.

Despite this, unfortunately indigenous peoples throughout the United States, but especially in Hawaii, have often struggled with protecting their norms and values in courts, affecting their ability to enact meaningful change. After Hawaii became officially a U.S. state in 1959 via coup, these colonized lands were placed in a public trust and given to the state government’s Department of Land and Natural Resources. Mauna Kea specifically was leased to the University of Hawaii, which of course, took advantage of the high elevation and proximity to the equator to help build no less than thirteen observatories (IfA 2018). It is not that the indigenous people have not fought for their land through legal measures, in fact they have extensively, but their arguments are almost always shut down. In one case, they were not permitted to cite damages acted upon a spirit because it is not a human, even though their culture recognizes and respects these beings (Saks). The State owns the land, so it can theoretically do as it pleases while belittling those who have to make their culture palatable for another that was created from oppression and racism. Additionally, the U.S. Supreme Court ruled that sacred land is not necessarily protected from damage by the First Amendment right to freedom of religion. Their logic was that building, say, a road on sacred land does not prevent its worship, so

indigenous people have no right to sue the government on this basis (Fagan 2020). This leaves the protesters disadvantaged when pursuing their climate activism, because the government sees no unconstitutional infraction where they see the highest offense.

Legal measures often have the strongest ability to shift discourse because they are considered the most legitimate in the Western world. This means that the outcome of a court case strongly guides the public eye of morality on a subject, remembering of course the *Dred Scott* decision that led to state-sanctioned dehumanization. As established, this is a clearly flawed lens: indigenous people lack legal standing because institutional racism and subjugation have prevented them from holding an equally valid defense. Perhaps they would own the land without the deposition that overthrew their ancestors, and the tides would turn. But for now, they are left without a strong defense of why exactly Mauna Kea should not gain a telescope when they have no right to decide what happens on “someone else’s” land. Until and unless these legal norms change, indigenous people can never be truly strong custodians of the environment when they cannot defend it on paper from people who want to defile it.

Additionally, the indigenous influence is minimal due to the societal tendency of favoring the financial, reputational, and ultimately colonialist priorities of the Institute for Astronomy at the University of Hawaii. The IfA is perhaps the strongest astronomy department in the country, and there is no reason for otherwise, considering their program is situated amid a dozen world-class telescopes that they make millions from. With this massive source of monetary gain comes the opportunity to toy with the priorities of the University, ensuring that their needs are always considered above those who do not earn them \$30,000 a night. Natives make up half of all unhoused individuals in Hawaii, despite being only 20% of the population, so when confronting powerful landowners they cannot offer a worthy financial alternative (Figuerola 2021). Besides,

of course, the opportunity to protect endangered species and a beautiful mountain, but that is small potatoes when there is money to be made.

By and large, this imbalance is because the role of science institutions is seen as more legitimate than traditional ecological knowledge, the collection of many indigenous beliefs and practices passed down orally from the ancestors (Indigenous Climate Hub). The University claims they monitor all shrines and burial grounds, acknowledging the land's significance (University of Hawaii 2019). But they still believe that cultural sites and actions on Maunakea relating to its defense are “modern” practices and not cultural (Tanigawa-Lau 2022). By doing this, they highlight how Indigenous protests are taken less seriously than any Western protest would: this is supposedly not a protected site, after all, so they can purport that the protests on damaging this holy land are exaggerated. Meanwhile there is no recourse for the millions of native Hawaiians whose land is being blasphemed against right before their eyes (Muneoka 2023). Moreover, their culture forbids anyone from even traveling up the mountain before seeking permission from the gods, through an offering (Crabbe 2002). By this metric, any foreigners driving up to Mauna Kea—no less with construction equipment—are being massively offensive to the Hawaiian culture that revolves around protecting and respecting this holy land. Not that the University much cares.

They are not able to be strong custodians of the environment though because they cannot easily change social and cultural norms that overwhelmingly prefer a white, Judeo-Christian belief system and moral worldview. When they attempt to be, their protests are met with bureaucratic spikes of discouragement evocative of Jim Crow bigotry: the governor installed “no parking” signs on the observatory road during the protests so the demonstrators would get citations (Perry 2019). Native Hawaiians have less resources and lose influence whenever they

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ask for even a little more than none, so there is no realistic way they can fully restore the environment. They have intentionally left Maunakea almost barren of development because it would disturb the other species present there (Tanigawa-Lau 2022). The indigenous peoples are clearly not failing to be meaningful stakeholders from lack of desire. Instead, those in power do not care about protecting the land and animals from bulldozers and cranes. The mountain itself, the firstborn child of the creators even, is meaningless when money can be made from razing its luscious grass (Tanigawa-Lau 2022).

With all of this said, it is hard to fully argue that the indigenous voice has been meaningless or futile when their activism has, as of February 2026, shut down the TMT construction entirely. Last year the National Science Foundation diverted its funding to the Giant Magellan Telescope in Chile, and there are now talks that the TMT may move to the Canary Islands (Frommer 2025). It also seems that celebrity involvement from actors Dwayne “The Rock” Johnson and Jason Momoa added some palatability for mainland Americans: they came as millions of Instagram followers, but stayed to hear native Hawaiian voices speak for the lands they hold so dear. Additionally, it must be said that the University previously agreed to decommission 5 telescopes on Maunakea in time for opening TMT, as a compromise to the protesters (University of Hawaii). Perhaps some cultural and social norms are shifting. However, this win is shaky at best: shifting the funding only pushes the same questions of power and inequity to Spain, for another former colonial empire to deal with. This success on Maunakea is unfortunately not because indigenous people protested wholly successfully, instead that the people in power believed they could sacrifice some goals to save face. There is unfortunately no widespread shift in the perception of indigenous people globally or extra validation in their cause

that suggests they have become successful custodians of the environment. We can only hope for more progress in the future.

Although the situation is drastic, there is still hope—if only because there always is.¹ Peacebuilding can be achieved, perhaps through two-eyed seeing, the idea that combining indigenous storytelling and Western science adds depth and creates a unique worldview (Daniel 2023)². This could be put in practice by incorporating TEK into legislative sessions on climate or recognizing spirits as entities in court cases, hopefully decreasing the mistrust and suspicion from both parties (Swain 2018). But it is difficult because of the continual dissent towards native culture that puts the white perspective above their own.

As an astronomy major, TMT would indeed be one of science's greatest gifts. (The hand-me-down telescopes for us undergraduates scale up in capability alongside the newest models.) But it is not a worthy trade at the expense of indigenous people being belittled for speaking out even more and hearing that their culture is less valid than ours. It is not their fault. It is not from lack of will or action. But the powerful University of Hawaii has managed to completely shut down indigenous activism in this realm by mounting both a legal and cultural defense. They claim land ownership while acting sanctimonious and respectful, of “both the land and science”. Peace is possible, but only when we with power do the work for those without. Until then, indigenous people will never be sufficiently able to challenge the legal and societal norms in governance while they fight an uphill battle against the Western world that is almost praying on their downfall. It cannot be said that we are not doing precisely that.

¹ Real ones will recognize this line from I believe my reading response. If you have a truly genius line, why not reuse it?

² I attended Dr. Daniel's colloquium in the astronomy department some weeks ago. It was mostly on galaxy dynamics, but because I am such a *wonderful* student, I took detailed notes on the two-eyed seeing aspect to use in my POL S 384 essay. ☺

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Course sources are bolded for your convenience!

Note: without these citations, the essay comes in at 1979 words.

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³ Please note that I have cited some sources not because I directly used them to back up a point, but because my own original ideas and perspectives described in the essay are somewhat or heavily influenced by them.

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